

FHS Ethics: Animal Ethics

Readings

Required reading:

- Jaworska, Agnieszka, and Julie Tannenbaum. 2013. "The grounds of moral status." In the Stanford Encyclopedia of Philosophy.
- Regan, Tom. 1983. "Animal rights, human wrongs." In *Ethics and animals*, 19-43. Springer.
- Kagan, Shelly. 2016. "What's Wrong with Speciesism?(Society for Applied Philosophy Annual Lecture 2015)." *Journal of Applied Philosophy* 33 (1):1-21.

Optional reading:

- Harman, Elizabeth. 2011. "The Moral Significance of Animal Pain and Animal Death." In *The Oxford Handbook of Animal Ethics*, edited by Tom L. Beauchamp and R.G. Frey, 726–737. Oxford: Oxford University Press.
- McMahan, Jeff. 2015. "The moral problem of predation." In *Philosophy comes to dinner*, edited by Andrew Chignell, Terence Cuneo and Matthew C. Halteman, 268-293. Routledge.
- Singer, Peter. 2015. *Animal Liberation (3rd Edition)*. London: The Bodley Head. Chapter 1.

Past Year Questions

What explains why human beings and the other animals are moral patients but only we are moral agents? [2024 I]

Does it matter whether an animal is human for determining whether we have duties with respect to them? [2024 II]

‘There is no property that is both plausibly sufficient for moral status and shared by all beings whom we want to say have moral status. So attempts to identify such a property are doomed to failure.’ Discuss. [2023]

Do animal rights stand in the way of our re-introducing predator species to ecosystems from which they have vanished in recent centuries? [2022]

‘The charge of speciesism depends for its power on a prior assumption of moral equality based on the capacity for suffering. But that capacity gets its distinctively moral significance from within an outlook that is essentially concerned with the attitudes humans bear to each other, and so cannot furnish the needed basis.’ Is this a compelling argument? [2021]

Part I: Grounds of Moral Status

Overview

Full Moral Status

- FMS implies Strong Reason Against Interference
 - It is an extremely strong moral reason against interfering, regardless of whether this interference results in harm. This extremely strong reason can be overridden only in a narrow set of special circumstances and might altogether silence many types of conflicting reasons.
 - Despite its strength, the presumption not to interfere with beings with FMS may be overridden, perhaps, for example, when the lives of a very large number of others are at stake. But, crucially, even when the presumption is legitimately overridden in such special circumstances a moral residue remains, so that, for example, there is still reason to strongly regret the circumstances that called for such action.
 - The reason not to interfere with beings with FMS is stronger than the reason not to similarly interfere with beings that have some, but not full, moral status.
- Those with FMS have equal moral status i.e. when two beings both have FMS, the reason not to interfere with them is equally strong, all relevant factors held equal
 - Known as the equal wrongness thesis
 - Question is what are the “relevant factors” – typically thought of as age, level of intelligence, social circumstances etc
- FMS (might) imply Strong Reason to Aid
 - Not as strong as the reason against interference i.e. the set of circumstances which can override the reason to aid a being with FMS is broader
 - Imagine a context in which one is saving individuals from a certain level of harm, such as pain, discomfort, or death. When faced with a choice of saving either a being with FMS or one without FMS, barring further reasons that may complicate the moral picture (e.g., indirect consequences of saving the being without FMS for other beings with FMS), there is a stronger reason to pick the being with FMS
 - Further, even in cases where aiding is not in fact possible or the reason to aid is overridden, it is a graver moral misfortune, *ceteris paribus*, to leave a being with FMS unaided, as compared to a being without FMS
- FMS (might) imply Strong Reason to Treat Fairly
 - While this is even less commonly explicitly associated with FMS, some views emphasize that comparable interests of beings with FMS matter equally in moral decisions, giving rise to strong reasons to treat such beings fairly
 - For example, when distributing goods among such beings, in circumstances when they can all benefit similarly, barring special purposes, relationships, or independent claims on the goods, we have strong reason to distribute the

goods equally (or in another way that's fair, depending on the account of fairness)

- Distinguishing Reasons Constitutive of Moral Status from Other Reasons
 - The reasons entailed by FMS are to be understood as independent of special relationships, contracts etc and are impartial reasons that every moral agent has reason to act or refrain acting in the ways discussed
 - So, for instance, a parent has at least two reasons not to kill his own child: a reason in virtue of the child's FMS, and a reason in virtue of the parental relationship, which generates a special obligation for this particular agent not to kill this particular child.
 - In addition, these reasons are independent of other facts about the action, for example, the action's possible bad long-term effects. Instead, they are reasons to treat the being this way for the being's own sake.
 - Important not to infer moral status from the degree of wrongness or badness of an act, from the existence of rights or from the strength of reasons in favour of the act
 - For example, it might be worse for a parent to kill his own child than a stranger's child, but that does not mean that the children have different moral status. The child has a right that her parent not kill her, in virtue of the special relationships between parents and their children, but this is in addition to, and separate from, the right not to be killed that the child has in virtue of her moral status
 - Certain views might acknowledge that some humans lack FMS and yet emphasize that we ought, nevertheless, to treat them as though they have FMS due to the bad effects that would otherwise follow
- Degrees of moral status and how to capture them: the prevailing emphasis has been on the difference in status between creatures or entities that have some moral status and those who deserve the highest degree of moral status
 - Way 1: vary the strength of the reasons outlined in section 2 (and hence also the degree of wrongness involved in acting against these reasons)
 - For example, while there is a very stringent moral presumption against killing an unimpaired adult human being, there might be only strong but non-stringent reasons not to kill a dog, and very weak reasons not to kill a fish. The weaker the reason not to kill is, the broader the set of circumstances are that can override this reason. In addition, it will silence fewer, if any, conflicting considerations
 - Alternatively, one could treat FMS as involving a stringent reason not to be killed of the type that, in cases of conflict, would override what maximizes the overall good, whereas, for a being with lesser moral

status, what maximizes the overall good – with this being's good included in the calculus – does settle how this being should be treated

- Way 2: vary not the strength of the reasons but which reasons apply
 - Instead of the three reasons associated with FMS, lesser moral status might involve two kinds of reasons (a stringent moral presumption against interference and a strong reason to aid, but no reason to treat fairly) or only one (a stringent moral presumption against interference, but no reason to aid or treat fairly)
 - Alternatively, lesser moral status might involve fewer presumptions against different types of interference. For example, there might be only a presumption against causing a chicken pain but not a presumption against killing it.
- Threshold vs Scalar conceptions of moral status
 - FMS is a threshold conception: basically, if an entity S has some capacity X taken to be paradigmatic of moral status M, any entity with capacity X (provided it meets the relevant standard for having X) has M, no matter how much of X they have
 - Suppose, for example, that the capacity to value (which we will use as shorthand for the capacity to make an evaluative judgment) were a sufficient ground for having a high degree of moral status. According to the threshold conception, if the capacity to value grounds a high degree of moral status, then any being that has this capacity, regardless of how often or how well it can exhibit this capacity, has the same moral status as any other being with this capacity
 - Scalar conception highlights the importance of how much of the capacity X one has. Put alternatively, if the possession of a generic capacity to value makes a difference to moral status, then the possession of different specific levels of this capacity (e.g., being able to value a greater number valuable things or to value them more fully) confers differential status
 - E.g. how often and how well one can exhibit or exercise a capacity to value

Grounds of Moral Status: on what basis do we ground FMS

- Common sense view
 - We want to come up with an account that provides coverage to all humans, including the intellectually disabled, handicapped and children
 - Any view that excludes the above falls prey to the challenge from being underinclusive
 - A view may also face the overinclusiveness charge if it grants FMS to entities like trees and plants
- Sophisticated Cognitive Capacities: a being has FMS iff the being has very sophisticated cognitive capacities (intellectual or emotional)

- Proponents and Versions
 - Kant: argued that autonomy, the capacity to set ends via practical reasoning, must be respected and is what grounds the dignity of all rational beings; beings without autonomy may be treated as a mere means
 - Quinn: claims that the capacity to will (his term for autonomy) is sufficient for the rights of respect
 - Other intellectual capacities that have been suggested, even if not always embraced, as grounding what we call FMS include the following: the capacity for self-awareness (McMahan) or awareness of oneself as a continuing subject of mental states (Tooley); being future-oriented in one's desires and plans
- According to Sophisticated Cognitive Capacities accounts, the feature grounding FMS is not relational: the source of moral status is neither a relation the individual stands in (e.g., membership in a species) nor a capacity whose exercise requires active participation of another (e.g., the capacity to relate to others in certain mutually responsive ways)
 - Individuals have FMS solely because they can engage in certain cognitively sophisticated acts or responses on their own
 - A being of any type that has these sophisticated cognitive capacities has FMS, and so the accounts avoid anthropocentrism. However, since most (but not necessarily all) animals lack sophisticated cognitive capacities, they are not accorded the same moral status as an unimpaired adult human
- Objection
 - Underinclusiveness: for example, infants lack sophisticated cognitive capacities, and so fail to meet this necessary condition for FMS. The versions that offer only a sufficient condition for FMS seem more plausible since they leave open alternative routes to FMS. But such accounts still leave the moral status of infants unaccounted for, and possibly on a par with that of dogs and rabbits
 - May still have strong reasons not to kill human infants but these reasons will have nothing to do with the moral status of infants or are not reasons for the infants own sake
- Capacity to Develop Sophisticated Cognitive Capacities: a being has FMS iff the being has very sophisticated cognitive capacities or the capacity to develop these sophisticated capacities (without losing one's identity)
 - Marquis: wrongness of killing of a child is due to the loss of a "future like ours"
 - Objections

- Insufficiency: mere potential cognitive capacity is insufficient for FMS or even a weaker moral status. A potential US president has neither rights nor even a claim to command the military; likewise in the case of potentially cognitively sophisticated beings and the rights associated with moral status or a child doesn't have rights of an adult to own property
 - Underinclusiveness: Many conscious human beings whose cognitive impairment is both severe and permanent cannot meet these accounts' conditions for an elevated moral status. It might be that humans who currently suffer from severe, permanent cognitive impairment, but once had sophisticated cognitive capacities, have FMS in virtue of the past possession of these capacities. But it is unclear how to defend such a claim. Moreover, the moral status of permanently severely cognitively impaired humans who *never* had sophisticated cognitive capacities remains unaccounted for
- Rudimentary Cognitive Abilities: a being has FMS iff they have rudimentary cognitive abilities
 - Variations
 - Appeal to capacity to experience pleasure or pain i.e. sentience
 - Appeal to having basic interests or basic emotions
 - Appeal to capacity for consciousness
 - Some philosophers only indirectly focus on rudimentary capacities. Their focus is on the "equal moral consideration" of interests, but they make it clear that possessing rudimentary cognitive capacities is a necessary condition for having interests. Utilitarianism is the best known equal consideration view, e.g., maintaining that equal amounts of suffering and pleasure should be factored equally into the utilitarian calculus, regardless of whether the suffering and pleasure is that of a human or animal.
 - Equal consideration may be interpreted this way: since equal interests are treated equally, the beings with those interests are of equal moral status. Singer, famously associated with the equal consideration view, might fit this interpretation. However, because he thinks that self-conscious beings have interests that merely conscious beings lack, he allows that the former beings might have rights that the latter lack.
 - Objections
 - Overinclusiveness: Most (but not all) animals meet these lowered standards for FMS – they have the capacity for pleasure, pain, interests, and consciousness – and so their moral status would be on a par with most human beings (namely all those who possess these

rudimentary capacities). Such a view seems to treat animals, infants, and severely cognitively impaired humans, all of whom exhibit only parts of rational nature, as morally on a par with each other and with unimpaired adult humans.

- Counterintuitive and against the equal wrongness thesis: implies that two beings can have equal moral status or deserve equal consideration and yet require differential treatment due to differences in the interests impacted
 - What an unimpaired adult human stands to lose in being killed, for example, is much weightier than what a bird would lose. The capacity of foresight, for example, can make for weightier interests, and so human beings with this or other forms of cognitive sophistication are harmed more by death
- Problem of those without cognitive sophistication: unable to account for the differential treatment of both conscious humans with severe irreversible cognitive impairments and infants who will die due to disease before acquiring cognitive sophistication, as compared with many animals (such as a dog), since here the affected interests are similar. Thus, while one may grant that rudimentary capacities ground some moral status, one must look beyond such capacities to explain the difference in moral status between humans and most animals.
 - Reply: Anderson points out that one can have an interest in being dignified in the eyes of the human community. While both dogs and humans have this interest, what it takes for a human with severe cognitive impairments to be dignified might be quite different from what it takes for an animal with similar cognitive abilities to be dignified, possibly leading to different rights
- Member of Cognitively Sophisticated Species: a being has FMS iff they are a member of a Cognitively Sophisticated Species
 - The initial view of human membership as sufficient for FMS: If there are non-human cognitively sophisticated individuals, such as higher animals or alien species, they would seem to deserve a high moral status equal to that of human beings. Thus, this account should not make human species membership a necessary condition for FMS, but rather be disjunctive: having sophisticated cognitive capacities or belonging to the human species is necessary and sufficient for FMS.
 - By introducing the latter condition (human species membership), such a view can establish FMS not only for infants and severely cognitively impaired human beings but even for fetuses and permanently unconscious human beings; moreover, any non-human individual who lacks cognitively sophisticated capacities, which includes most (but not all) animals, lacks FMS

- However, it is of no help grounding the claim that non-human animals, trees, species, or ecosystems have any moral status.
- Modified view: substituting membership in a cognitively sophisticated species for membership in the human species as the second sufficient condition for FMS
- Objections
 - Relevance: The human species, for example, is a morally relevant category because the species is characterized, in part, by morally relevant properties such as sophisticated intellectual and emotional capacities, and not merely by biological criteria (e.g., mating abilities). But it is unclear why a token member of a species, a token lacking any of these morally relevant capacities, should get the moral status from the type it belongs to (the species). If membership in the type does not require any of the morally relevant features, how can the membership be morally relevant?
 - Whether one belongs to a given species depends on biological criteria, such as whom one can mate with, whom one is born of, or having the relevant DNA. But it is unclear why these biological criteria are relevant for moral status.
 - McMahan: For example, if the cognitively enhanced Superchimps came to outnumber ordinary unenhanced chimps, the norm for the chimp species would have changed and for this reason alone the unenhanced chimps would have gained higher moral status
 - if the Superchimps become their own species (via gene therapy and interbreeding), a cognitively impaired member of this newly created Superchimp species with the same cognitive capacities as a non-impaired ordinary chimp (assumed here not to be sufficiently cognitively sophisticated to have FMS) would have a very different moral status from the ordinary chimp. And yet the two chimps would be alike in every respect other than their species classification.
- Dilemma: One may think that the above objection can be overcome if the relevant criterion for FMS is not conceived of at all in terms of membership in a cognitively sophisticated *biological species*, but rather in terms of membership in a cognitively sophisticated *kind*.
 - However, this approach faces a dilemma: either (a) a cognitively sophisticated kind does not include members who can never be cognitively sophisticated and thus leaves out many severely cognitively impaired human beings or (b) cognitive sophistication is not a requirement of membership in a cognitively sophisticated kind

(e.g., membership requires merely having the relevant genes even if their expression is blocked by other genes or the environment), but then this membership does not seem to require any morally relevant features

- Special Relationships: ground strong reasons not to interfere, and perhaps also to aid and treat fairly, not only by appeal to sophisticated cognitive capacities but also by appeal to special relationships
 - On such accounts, *specific agents* must not interfere with an individual or must respect that individual's rights in virtue of being in a relationship with that individual.
 - On one popular version, the relevant relationship is being a fellow member of a community, where the community is composed of all those of the same biological species
 - The motivation for this version of the Special Relationship account comes from thinking about the species relationship as analogous to other relationships (biological, social, etc.) that generate special duties and rights.
 - For example, the relationship between a parent and his child creates an especially strong reason for the parent not to kill and to aid his child.
 - According to Anderson, the capacity for reciprocal accommodation with moral agents is a necessary (not sufficient) condition of having rights .
 - This may appear to be a Rudimentary Cognitive Ability type of view. However, unlike the capacities in that account, a rat, for example, might fail to have this mutual accommodation capacity vis-à-vis most humans, and so would not have the right to be killed by these humans; but the rat might nonetheless have this capacity vis-à-vis other moral agents (human rat lovers, angels, etc.), and so might be able to gain this right from these agents based on additional conditions.
 - When this capacity for mutual accommodation is combined with membership in the human society (which does not require being a human), then, according to Anderson, this is sufficient for a relationship that grounds rights to non-interference and aid from human beings, though perhaps not as strong as those associated with FMS
 - All of these Special Relationship accounts escape one drawback of the Member of a Cognitively Sophisticated Species account.
 - The reason not to interfere (or aid, etc.) is not based on being a token of a type with morally irrelevant criteria for membership. Merely belonging to a species or other type of group is not the source of the reason not to interfere. Instead, by being a member of a species or

another group, a token individual is thereby in a relationship with another token member of the group and this relationship is taken to be the source of the reason not to interfere

○ Objection

- Not really FMS: do not truly offer an account of moral status, but only of particular agents' reasons vis-à-vis the individual at issue.
 - A being's moral status should give every moral agent, whether human or not, reasons to protect that being but on these accounts, by contrast, only those moral agents who are members of the same species, or are in some other special relationship with the being, have a reason, let us say, not to kill the being
 - For example, a human being, in virtue of being in a special relationship (via species community) with a human infant, has a reason not to kill the infant, but a Martian, if there were one, would not have this reason, since he would lack this special relationship with the human infant.
- Overinclusivity: If the relevant relationship is one with those in one's social community then, depending on how this is interpreted, any animal incorporated into human social communities (e.g., dogs) would gain strong rights, contrary to the commonsense view.
 - The Special Relationship approach would then be committed to claiming that animals have stronger rights than some cognitively impaired humans: humans might have more of a relationship with other "embodied minds" (i.e., any being with both a body and mind, such as an animal) than with human organisms that lack minds (such as an anencephalic baby).
- Incompletely Realised Sophisticated Cognitive Capacities: If cognitively sophisticated capacities are sufficient to elevate a being's moral status, so too should the same sophisticated capacities incompletely realized.
 - To understand this proposal, let's begin with incompletely realized activities. These are activities one engages in when one learns X "by doing": e.g., a novice piano player learns to play by slowly reading simple note sequences and pressing (at least some) corresponding piano keys, guided by the end of mastering the instrument.
 - With certain background conditions in place, the pressing of the keys is best thought of not as playing the piano badly, but rather as incomplete realizations of what piano playing amounts to.
 - Jaworska and Tannenbaum interpret certain activities of cognitively unsophisticated humans analogously. With certain background conditions in place, when a child or a cognitively impaired adult

models, even in a most rudimentary way, a cognitively sophisticated activity, guided by a mentor's (parent's, caretaker's) end of the mentee acquiring cognitive sophistication, the mentee incompletely realizes the corresponding cognitively sophisticated activity

- The key background conditions are: (1) it must be reasonable for the mentor to adopt this end and (2) the mentee's activities must be feasible means of achieving the mentor's aim. These conditions ensure a sufficiently firm connection between the mentee's rudimentary activities and the mentor's end of the mentee mastering the sophisticated activity.
- Illustrations
 - Unimpaired babies' activities with their caretakers *can* straightforwardly fit the above template, so babies have the *capacity* to incompletely realize cognitively sophisticated activities, and thus have the corresponding elevated moral status.
 - Even many human beings incapable of achieving cognitive sophistication can fit the above template. A caretaker of such impaired humans is required, in virtue of that role, to have that human's flourishing as an end, and the flourishing of a human being encompasses developing sophisticated cognitive capacities. When circumstances are unfavorable and the caretaker cannot reasonably hold the latter, subsidiary end as an aim to be realized, the caretaker can still reasonably hold this end as a standard (meeting condition 1), i.e. as a guide as to what next best aim to adopt. The activities of many cognitively impaired human beings can be feasible means to the caretaker's next best aim guided by this standard (meeting condition 2). In this way, these beings have the capacity to incompletely realize cognitively sophisticated activities and so also have the corresponding elevated moral status.
 - By contrast, it would never be reasonable for a dog's caretaker to hold the standard of developing the dog's cognitive sophistication, since the dog can fully flourish without such sophistication. Moreover, typically it is also unreasonable to hold the end of making the dog cognitively sophisticated as an aim (not merely as a standard). But even in some odd circumstances a caretaker could reasonably adopt this aim, the activities of the dog would fail the feasibility condition (2). So, either way, dogs lack incompletely realized cognitively sophisticated capacities

Justifying the Grounds of Moral Status: why do proposed grounds play their purported role in grounding Moral Status

- Kantian Tradition: key claim is that autonomy, or the capacity to set ends according to reason, is unconditionally valuable and the ultimate condition of value of everything else
 - On one version, in rationally choosing or valuing anything at all one must presuppose the supreme value of one's own rational capacities, and, by extension, the supreme value of rational capacities in general. On this picture, rational agents must recognize the supreme value of rational capacities as a condition of valuing anything else, and this recognition takes the form of affording FMS to beings with rational capacities
- Greek Tradition: turn to the "good" for relation as the underpinning of all value to defend the claim that the capacity to value confers special status on those who have it
 - According to Theunissen (2020), whatever is genuinely good for human beings is of value in the sense that it generates reasons to act accordingly. The capacity to value is good for human beings (is beneficial to them regardless of anyone's attitude or opinion about it) and that explains this capacity's special value.
 - A daunting challenge for this view is to explain – without slipping into circularity by claiming that humans have a special moral status – why the "X is good for humans" relation confers value on X while, in general, the "Z is good for Y" relation (e.g., a rabbit is good for itself) does not confer analogous value on Z.
- Contractualism: from a hypothetical reciprocal agreement among rational agents, claiming that all able parties would agree to be bound and to bind others to treat them in the agreed-upon ways (that encompass FMS)
 - These views work well to explain why the capacity to enter and adhere to such a reciprocal agreement, which includes the capacity to both demand moral status for oneself and to respect the moral status of others by assuming duties and responsibilities, would confer FMS on an individual.
 - For views that conceive of morality as at least partly originating from rational agents actively binding, obligating, or imposing authority on one another, it is easy to see why those with sufficient cognitive capacity to impose their authority on others would have FMS that others are bound to respect
- Utilitarianism: sees protection and promotion of interests as central to morality, and thus presupposes consciousness as the central subject matter of morality
 - On some views, the capacity to experience pleasure or pain (sentience) is a prerequisite of having interests and this explains why sentience is a ground of moral status.

Part II: Do Animals have Rights?

Against Animal Rights

The traditional Kantian account

- Second formulation: the Kantian account grounds the value of being an end-in-itself in the human's rationality or capability in exercising practical reason
 - The human stands apart from animals because they occupy two realms: the first is the realm of necessity, in which we are subject to physical laws; the second is the realm of reason in which we are free standing rational agents capable of acting morally
 - Humans are moral agents and thus moral patients precisely because we occupy the second realm; animals are neither of these because they occupy only the first
- (From Korsgaard) Kant's argument for the value of people as ends of themselves
 - Since we are rational, we cannot decide to pursue an end unless we take it to be good. This requirement is essentially built into the nature of the kind of self-consciousness that grounds rational choice. A rational being is one who is conscious of the grounds on which she is tempted to believe something or to do something – the purported reasons that move her to adopt a belief or intention. Because we are conscious of the grounds of our beliefs and actions, we cannot either hold a belief or perform an action without endorsing its grounds as adequate to justify it. To say that the pursuit of an end is justified is the same as to say the end is good. Importantly, Kant takes the judgement that the end is good to imply that there is a reason for any rational being to promote it i.e. not that everyone must care about the same things I do, but that if my caring about an end gives me a genuine reason for trying to make sure I achieve it, then everyone also has a reason, though not necessarily an overriding one, to try to make sure I achieve it
 - Consequently, Kant envisions the act of making a choice as the adoption of a certain maxim as a universal law that governs my conduct and that of others. My choosing something is making a law in the sense that it involves conferring a kind of objective or intersubjective value on some state of affairs to which all rational beings must then be responsive. Kant thinks that this implies that only rational choices have this normative character; only rational choices are made on the basis of an assessment of the grounds or reasons for them, and so only rational choices represent decisions about what should be done. The other animals do not make choices in the same sense that rational beings do, and such choices they do make do not have the character of law
 - But most of our ends we choose are simply objects of our inclinations which are at most good for you, relative to the "special constitution" of your faculty of desire. It does not generally follow from the fact that something is good absolutely and that anyone else has a reason to promote it. Yet, we do pursue the object of our inclinations and often expect others to help us in small ways or at least not interfere. That suggests we take it to be absolutely good that

we should act as we choose and get things that are good for us. This is because we take ourselves to be ends in ourselves → we represent ourselves as ends in ourselves insofar as we take what is good for us to be good absolutely i.e. we take things that are important to me to be important absolutely, because I take myself to be important absolutely

- This relies on whether we actually take ourselves i.e. represent our existence as rational beings → he justifies this by that whether we make a rational choice, we presuppose that we have a kind of normative standing (as a legislator in the Kingdom of Ends, whose choices are laws to all rational beings) → our rational nature marks us out as an end in itself.
- In the moral realm, your right to confer objective value on your ends and actions is limited by everyone else's right to confer objective values on his ends and actions in the same way: so only if your principle or maxim is morally permissible does it really count as a law, and you must be able to will it as a universal law. Kant takes that to mean that ultimately it is a rational being's capacity for moral choice that "marks him out" as an end in itself as he writes "morality is the condition under which alone a rational being can be an end in itself, since only through this is it possible to be a lawmaking member in the kingdom of ends"
- Two senses of end in itself (active and passive): standing as lawmakers (able to legislate for me hence placing me under an obligation to respect your choice) and standing as beings whose ends and actions should be regarded as good and so normative for everyone (passive). And for Kant, the two senses come to the same thing and says a human being has duties only to human beings, since his duty to any subject is moral constraint by that subject's will
- Kant thinks that we do have duties to treat animals humanely, we do not owe those duties to the animals but rather to ourselves

Kagan's Modal Personism

- Objection to Singer's Speciesism Challenge: we are not actually speciesist
 - Plausible modest view: both humans and animals count, but that human interests get special consideration than the corresponding animal interests
 - Human interests count more in different ways, in different cases (rather than by a constant or a multiple compared to animal interests)
 - Two kinds of Speciesism: unclear which Singer cares about
 - Relativised Speciesism: I care more about members of my own species (relativised sexism: men care more about men, women care more about women)
 - Absolute Speciesism: we care more about homo sapiens absolutely
 - What does it mean to take for two interests to be like each other → similar in all morally relevant ways

- Singer thinks intensity and duration of pain are the only relevant ways two experiences of pain needs to be alike
 - Singer only denies the speciesist's claim that it is legitimate to count human pain more than animal pain, simply by virtue of the fact that the pain is had by a human → offers no real argument
- The principle of equal consideration of interests does not tell us how to count interests as relevant alike
 - Kagan thinks that the principle really just says to disregard irrelevant differences and so is much more trivial
 - Duration and intensity cannot be the only considerations: if I deserved to be punished while you do not, shouldn't the pain you are suffering be given more weight? → desert is a morally relevant difference even if it does not affect how the pain feels
- Singer is wrong in presupposing that sentience is a necessary condition to have interests: it is in the interest of the house plant to be watered, even if it is not sentience
- We only have intuition to support the claim that the line between sentience and nonsentience is a morally significant one
 - Even if everyone has the intuition that sentience and nonsentience is a morally significant difference, then Singer should also accept that everyone has the intuition that being human is a morally relevant feature
- Difference being speciesism and typical cases of prejudice
 - Racists or sexists accept those beliefs despite the fact that the evidence for them falls far short of meeting the standards that they themselves would normally insist upon when it comes to evaluating this sort of empirical claim
 - They stick to their beliefs despite the evidence and refuse to recognise the force of evidence
 - But speciesism is not based on false empirical claims but on direct appeal to moral intuition, and if we are prepared to give weight to moral intuitions in other matters, then it is not a prejudice
- We are not speciesists per se, but we care about whether someone is a person
 - We are not speciesists, but personists: what we think is important is whether someone is a person or not
 - Superman example: Lex Luthor is trying to kill Superman with some Kryptonite and is in great pain. Superman isn't human and isn't a member of our biological species – but this doesn't make a difference to us. There is almost no one who thinks "Superman isn't human, so his interests should count less than they would if he were"
 - We would count the death of the Martian as much as that of the human

- Persons are self-conscious and reflective
- But we also extend our intuitions to humans who might never be persons (like someone in a coma) or infants who are not yet persons
 - Three kinds: infants who will go on to become persons but are not yet persons and humans who once were persons but who now – perhaps due to dementia – no longer are persons and severely cognitively impaired humans who never were and never will be persons
 - We would think that there are stronger reasons against experimenting on a cognitively impaired human than an animal → we give the cognitively impaired human special consideration
 - So we may still be speciesists in the sense of giving special consideration to those part of the “person species” which includes Kryptonians and Martians
- Problems with Personism
 - Intuitive objection to personism: Consider a regular dog who goes through special chemical treatment and enhances its cognitive capacities so it is now a person but isn’t a member of the person species. So personism says that the intelligent dog won’t count the way you and I count and that’s unacceptable
 - But personism is a disjunctive claim: you get special weight just when either you are a person or you are part of the person species
 - Harder objection: is it really true that membership suffices to have your interest count more
 - Impaired Martian Dogs: suppose we discover that dogs were originally from another planet – Mars – where they are in fact persons but due to the gravitational field here on Earth, dogs born here are not persons and can no longer become ones. Still, it seems that Earth dogs are members of a person species, so according to personism their interests should count more, which is absurd
 - But if we suppose that on the correct account it would indeed turn out to be true that dogs are a person species, then we are inclined to think that the interests of Earth Dogs count more: if we replace dogs with Martians, we would have an even stronger intuition
 - Objection from Statistics: whether a species is a person species depends on statistics i.e. whether majority of members of the given species turns out to be persons
 - Plague objection: a plague arises such that most humans become cognitively incapacitated and no longer become persons and homo sapiens turn out to no longer be a person species → whether or not a given impaired human should count more depends on whether such plagues ever come to pass
 - Reply: not the statistical question of what most members are like but what the generic member of the species is like

- Kagan's objection: we are members of multiple groups i.e. families, genus, species etc
 - What is so special about one's species? Why is this group the one particular group we should focus on
 - Potential reply: membership in any given group matters and simply have to look to see for which groups it is indeed the case that typical members of the group have features which are such that if one had the given feature, that would be relevant to how one's interests should count. And then we can say that for all such groups membership in the group bestows special significance upon the interests of the members
 - But this concedes that there is nothing special about species membership per se
 - But this can't be right: if the members of a philosophy club make someone's pet rabbit a member of the club. And since the generic member of the philosophy club is a person, should the personist accordingly agree that the rabbit should have its interests count for more since the rabbit is a member of a "person club"
 - Key difference: philosophy club is an artificial group while species are not → but why does this matter
- Modal personism: what matters morally is the property of being a modal person
 - The reason why we care about memberships in natural groups rather than artificial groups is because they tell us something about the nature of the individual member
 - Our membership in the "person species" tells us that even if the given individual is not, in fact, a person, nonetheless the individual in question could have been a person
 - Membership in artificial groups like philosophy club does not tell us anything of this kind
 - Kagan: the fact that something could have been a person is itself a morally significant property
 - Imagine for some genus, typical members of the genus have some morally relevant property and yet for all that there is a particular species that falls under the genus where generic members of that species actually lack the feature in question. Suppose in particular that the generic members of some genus are indeed persons, and yet there is a species within that genus whose typical members are not in fact persons. And then consider an animal that is a member of that species, and thus of the genus as well. We should not conclude that since the animal is a member of a person genus it too should have its interests counted for more

- The fact that members of the genus are typically persons seems irrelevant; what seems relevant is the fact that members of the species in question are not typically persons
 - This is why we focus on species, rather than on other natural groupings
- But what really matters is not membership in the species but the modal property itself about what the individual could have been
 - Membership in a person species reveals that even an individual who is not in fact a person nonetheless could have been a person
 - Not biological fact that a given creature is a member of a person species but rather the metaphysical fact which follows from this
- Vagueness in what it means to could have been a person
 - Consider a severe genetic disease in which an infant's upper brain doesn't develop. Take it for granted that the infant could not have been a person. Should the infant's interest count for less?
 - Consider that an analogous disease develops but is purely out of environmental factors. Should we treat the infants differently
 - Some may say the notion of modality here is what is at fault
- Key conclusion
 - Modal personhood counts and is a morally relevant property; but actual personhood counts too, and actual personhood counts more than modal personhood
 - Death of a person counts more than the death of a modal person and more than the death of a mere animal

For Animal Rights

Singer's Speciesism Challenge

- We count the interests of members of our own species more than we count the interests of other animals and this is nothing more than prejudice
- Violates a fundamental moral principle i.e. the principle of equal consideration of interests which is that "the interests of every being affected by an action are to be taken into account and given the same weight as the like interests of any other being"
 - Not that we must treat every being the same way: we must give equal weight to like interests i.e. do not need to give animals the right to vote
 - Singer thinks that the dog may not care about voting but it does have an interest in avoiding pain, just like humans
 - Singer thinks we are species because in a choice between doing a lab experiment on an animal or on a human with a comparable cognitive capacity (like some adult with a cognitive impairment): we would without a second thought choose the animal

- It is arbitrary to draw any kind of line between interests at all: you count provided you are sentient i.e. the kind of being that can feel pleasure and pain
 - For Singer, sentience is both necessary and sufficient for one to have interest
- But Singer maintains that the death and life of a person matters more than an animal: people are self-conscious and aware of themselves as existing across time, thus having desires for the future
 - We should choose to save the life of a human vs an animal
 - But when it comes to pain, the difference between being a person and being a mere animal does not matter

Harman's Objection to the Surprising Claim

- The Surprising Claim: we have a certain kind of strong reason against animal cruelty
 - A: We have strong reasons not to cause intense pain to animals: the fact that an action would cause intense pain to an animal makes the action wrong unless it is justified by other considerations; and
 - B: We do not have strong reasons not to kill animals: it is not the case that killing an animal is wrong unless it is justified by other strong considerations
 - Background belief: while there is something morally wrong with factory farming, there is nothing morally wrong with "humane" farms on which animals are happy until they are killed
- Harman's argument
 - (1) if it is true that we have strong moral reasons against causing intense pain to animals, such that doing so is impermissible unless justified by other considerations, then part of the explanation of this truth is that animals have moral status
 - (2) if it is true that we have strong moral reasons against causing intense pain to animals, such that doing so is impermissible unless justified by other considerations, then part of the explanation of this truth is that significantly harming something with moral status is impermissible unless justified by other considerations
 - (3) If an action painlessly kills a healthy animal in the prime of life, then that action significantly harms the animal
 - (4) if it is true that we have strong moral reasons against causing intense pain to animals, such that doing so is impermissible unless justified by other considerations, then painlessly killing a healthy animal in the prime of life is impermissible unless justified by other considerations
 - (5) Therefore, the Surprising Claim is false
- Objection 1: Killing an Animal Does not Harm it
 - An action that painlessly kills an animal in the prime of life deprives the animal of future life, which would be a positive benefit to the animal but does not harm the animal

- Two senses of X being bad: (i) something that is in itself bad for the being, and (ii) deprivation of something that would have been in itself good for the being
 - Being harmed is when it undergoes (i) and not necessarily when (ii)
- The proponent would accept that animals have moral status, and grant that (2) is true, but only if we narrow what harm means. They would deny (2) if harming meant to encompass all cases of failing to positively benefit
- There are cases in which depriving of benefit is not the same as harming: if I decided to give an acquaintance money but then decided not to immediately, my action prevents positive benefit to her but I did not harm her (and this is also not wrong)
- But this view is just not true: while it is typically the case that when a being fails to get a benefit, the being is not harmed, there are some actions that deprive a being of benefit that constitutes harm i.e. someone who permanently deafens you deprives you of hearing but obviously harms you → the key is interference with a person in such a way that deprives her of benefit does harm the person
 - If true of people, then true of animals
- Objection 2: Death is not bad for animals because animals lack sufficient psychological connection with their futures
 - When a person dies, she loses out on the future she would have had. She had expectations, hopes, plans and dreams that are thwarted. Animals however do not lose out on their futures. They do not have the right kind of psychological connection to their future lives to be losing out on them
 - One argument
 - The death of a person is bad for her only because it frustrates her desires and plans for the future. Therefore, death is bad in general only because it frustrates desires and plans. Animals do not have such desires and plans. Therefore, animals' deaths are not bad for them
 - This rejects that killing animals is bad for them
 - Harman denies the premise: true that one way death is bad for most persons is that it frustrates their desires and plans, but a person might not have any desires and plans for the future, yet her death could still be bad for her. Consider someone who is depressed and wants to die and has no plans or desires. But suppose she in fact would recover from her depression and have a good future if she continued to live. If she dies now, then death deprives her of a good future and is bad for her → I think the point is more general that something can be good or bad for you irrespective of your actual desires
 - Another argument

- It is true that animal pain matters morally. But it is a mistake to conclude that this is because animals have moral status. Rather, animals lack moral status but stages of animals have moral status. Animal pain matters morally because an animal stage is in pain. What is better or worse for the animal does not matter morally, though what is better or worse for stages of it does
- Assumes an animal is a mereological sum of many animal stages and denies (1)
- Third view implies two claims: (i) there are things that can be harmed but lack moral status (true, plants), (ii) there are things that lack moral status although they are entirely made up of stages that have moral status (consider a mereological sum of several, non-temporally overlapping persons called Longy that includes me. If Frank punches me, he harms me and I have moral status. He also harms Longy but entites like Longy do not have moral status)
- And because it is the animal that dies but not the animal stages, it cannot be bad for the animal because the animal does not have moral status
- Harman's reply: consider a young cat that could lead a long, happy life if it is given serious surgery that would cause it quite a bit of pain for a few days, followed by serious discomfort. Otherwise the cat will die painlessly. The above argument cannot explain why it is permissible to do the surgery and suggests that it is wrong since we cause serious pain
 - To account for the permissibility of the surgery, we need (i) while the action harms an entity that has moral status, it also benefits that entity, and (ii) it is not the case that the action harms an entity that has moral status, but the action does not also benefit that entity
 - This implies, animals but not animal stages lack moral status → while surgery harms the cat, it also provides benefits to that very being
- Objection 3: McMahan's Time-Relative Interest View
 - We have some reasons against killing animals but these reasons are not strong: the badness of death for a morally significant being is not a direct function of what the being loses out on in dying i.e. how good the life would have been; rather, it also matters what the being's psychological relationship is with that potential future life. If a being is such that, were it to continue to live, there would be only weak psychological connections between its current stage and future life, then the goodness of that future is less of a loss for it

than if the being would have stronger psychological connections with its future life

- Can explain why death is worse for the ten year old than the one month old: while the infant loses out more, the ten year old has a stronger psychological connection
- Animal death is not very bad for animals because animals do not have very strong psychological connections to their future selves: they do not have any strong interests in continuing to live
- The eventual claim is: we have strong reasons against causing animal pain, and we have some reasons against painlessly killing animals in the prime of life, but these reasons are weakened by animals' lack of deep psychological continuity over time
 - Denies (3): killing animals is only a minor harm
- Harman's Reply
 - assumes that on the time-relative interest view, an animal now has greater psychological connection to its near future than to its farther future life and also has negligible connection to its future life a sufficient amount of time in the future. This means the animal lacks any interest in avoiding particular bad experiences five years from now – any experience it would have so far in the future are so psychologically remote that animal currently has no interest regarding those experiences
 - Case 1: Billy is a cow with a serious illness. If the illness is not treated now and is allowed to run its course, then Billy will suffer mildly soon but it progressively worse in a few months, and be in agony then die. If treated now, Billy will undergo surgery under anesthetic tomorrow and will suffer more severely over the next two weeks and he would be discomfort free and never suffer agony.
 - It is permissible to do the surgery on Billy because while it will cause Billy to suffer, it will prevent worse suffering to Billy which he also now has an interest in avoiding
 - Case 2: Tommy is a horse with serious illness. If the illness is not treated now and is allowed to run its course, Tommy will live an ordinary discomfort free life for five years but will suffer horribly for several months and then die. If the illness is treated now, Tommy will suffer for 2 weeks post surgery but not nearly as severely as he would five years from now
 - Permissible to do surgery because Tommy has an interest in getting to live a full life, and though he has an interest in avoiding the pain of recovery from surgery, it is overall in his interest to have the surgery.

- The time relative interests view cannot explain why it is permissible to do the operation on Tommy: by its lights, Tommy has a reasonably strong interest in avoiding pain in the immediate future; he has no interest in avoiding suffering five years from now or in avoiding death five years from now. While the time relative interests view can easily account for the permissibility of the surgery on Billy, it cannot account for the permissibility of the surgery on Tommy

Regan's argument from human rights and consistency

Target accounts

- The Kantian account
 - People who torment animals will, or are likely to, torment people because they develop habits → spillover effect that makes mistreating animals wrong and are not concerned directly with the ill-treatment that the animals themselves receive
 - Regan thinks we ought to discard the Kantian account because that there is no rational, unprejudiced way to exclude the interests of nonhuman animals just because they are not interests of human beings
- Cruelty account
 - Prohibition against cruelty which covers and conveniently sums up our negative duties to animals, duties concerning how animals are not to be treated
 - Prohibition against cruelty to animals because it is wrong to be cruel to the animals themselves
 - Cruelty is to take pleasure in causing pain: an individual action is cruel if one takes pleasure in making another suffer → but the kind of pleasure matters otherwise we count boxers and dentists as cruel
 - Even if we can specify cruelty, we think that experimenting needlessly on animals are wrong, even if experimenters do not take pleasure when causing pain to the animals
 - Regan: cruelty has to do with a person's state of mind that is quite independent of the moral rightness and wrongness of a person's actions
- The utilitarian account
 - Grounded in two principles: (i) equality of interests principle (when interests are of equal importance to these individuals, they are of equal importance or value no matter who the individuals are), (ii) principle of utility i.e. maximise utility

- Singer: we ought to become vegetarians and oppose research involving animal subjects → intensive rearing of animals as well as their routine use in experimentation violates the equality of interests principle
 - Animals have an interest in not being made to suffer and we have further reason to believe that this is of comparable interest in the case of human beings
- Regan's reply: Singer's supposition that animals are treated differently than human beings does not imply that this differential treatment violates either the equality of interests principle or the principle of utility
 - We may count human and animal interest equally, but still think that there is more utility gained by eating meat and killing animals than the alternative
 - Alternatively, I may count my son and my neighbour's son equally but only help my son because I have duties to my son that I do not have to my neighbour's son
 - Singer begs the question by asking whether we would do to humans what we would allow to be done by animals because it assumes that by treating the involved individuals differently, we count their equal interests differently
 - Singer doesn't show that the differential treatment of animals does not maximise utility
- Regan: utilitarianism could also justify racism or sexism, just as it could justify speciesism

Regan's argument for animal rights

- Want to avoid utilitarianism for a rights-based approach
 - Dworkin: rights trump utility
 - Does not always trump collective interests: (i) overriding rights are justified when it is the only way to prevent vastly greater harm, (ii) allowing individuals to be harmed is a necessary link in a chain of events which collectively will prevent vastly greater harm, (iii) if we override the rights, we have a reasonable hope of preventing greater harm
- Key question: do animals have the right not to be harmed?
 - Humans have a right to be harmed because human beings have a certain kind of value → rights enter the picture because they enter in being grounded in inherent value
 - It is individuals who have inherent value who have moral rights and it is because they have value of this kind that they have a moral right not to be treated in ways that deny their having this kind of value
 - Rights are justified not by the value of consequences but by the value of individuals

- The value of humans consist in that they have a life – specifically, we are subjects of a life that is better or worse for us, logically independent of anyone else’s valuing us or finding us useful
- Our being the subject of a life that is better or worse for us does not depend logically on what others do or not do
 - Humans have inherent value because we are ourselves the subject of a life that is more or less valuable to us
 - What Regan means by subjecthood is that our beliefs, desires and feelings are all unified by belonging to us – animals, like humans, have beliefs and desires as well that are carried by the same entity. In short, entities with subjecthood are those with a biography which ties these momentary things together not simply because they all belong to the same person, but because they fit together into a narrative.
- Regan thinks that there is no doubt that there are numerous species of animals of which being a subject-of-a-life is true: they too have a distinctive kind of value in their own right, if we do
 - They thus have a right not to be treated in ways that fail to respect this value

Korsgaard’s Kantian Case for Animal Rights

- Traditional Kantian case: Kant viewed animals as “mere means” and “instruments” because they were beings “the existence of which rests not on our will but on nature” and were “without reason”. Hence they only had a “relative worth, as means, and are therefore called things, whereas rational beings are called persons because their nature already marks them out as an end in itself, that is, as something that may not be used merely as a means”
 - In constructing legal rights, Kant believed that humans had an innate right to freedom, which he defined as “independence from being constrained by another’s choice”. Hence, it did not suffice that the weak were able to pursue their conception of the good if the strong relented, since being dependent on another’s good will violated this right to freedom
 - Nonrational animals apparently do not have the kind of freedom that rights are intended to protect → Kant’s justification is from the fact that human beings are rational beings that we are able to choose our own way of life
 - Rationality is not the same as intelligence: rationality is the capacity to reflect on what counts as a good life, decide the questions for ourselves and live accordingly
 - Kant thinks all rights extend from the general right to determine for ourselves what counts as the good life/freedom i.e. property rights and also that the protection of freedom is the only thing that justifies the use of coercion
- Korsgaard: we must regard animals as ends in themselves

- Problems with Kant's view
 - Does nothing to explain the particular kind of value that rational beings are supposed to have (since things can be valued in different ways). Kant thinks that the value which attaches to persons is one in response to which we respect their choices, both in that we leave people turn free to determine their life and also regard their chosen ends as things that are good and worthy of pursuit
 - Unstable: the claim about the intrinsic value of rational beings is the sort of metaphysical claim whose pretensions Kant's philosophy is designed to debunk. Kant does not believe that human beings have the kind of direct rational insight into the nature of things that might tell us that certain entities or objects are, as a matter of metaphysical fact, intrinsically valuable. Roughly, Kant thinks that claims which go beyond the realm of empirical knowledge must be established as necessary presuppositions of rational activity i.e. presuppositions of thinking in general or of constructing a theoretical understanding of the world or of making rational choices. But his argument (see above) makes two key claims: (i) that the capacity for moral choice marks one out as an end in itself, and (ii) a human being has duties only to human beings, since his duty to any subject is moral constraint by that subject's will
 - Korsgaard thinks this does not follow since the idea that rational choice involves a presupposition that we are ends in ourselves is not the same as the idea that rational choice involves a presupposition that rational beings are ends in themselves, for we are not merely rational beings. The content of the presupposition is not automatically given by the fact that it is rational beings who make it.
- Korsgaard thinks that Kant conflates between us (i) presupposing our value only insofar as we are beings who are capable of willing our principles as laws and (ii) presupposing our value as beings for whom things can be good or bad
 - Korsgaard thinks that Kant's argument actually shows that we presuppose our value as beings for whom things can be good or bad i.e. as beings who have interest
- Korsgaard's argument
 - Suppose I choose to pursue some ordinary object of inclination. According to Kant's argument, this choice presupposes an attitude that I have toward myself, a value that I set on myself, or a standing that I claim. The central question is whether this value is only in virtue of my status as an autonomous being or the fact that I have interests. If this is the value that I set on myself as an autonomous being, then when I make a choice, I should be motivated by respect for my own autonomy, my capacity to make laws i.e. that I respect my

own autonomy is to suppose that I conform to a law simply because I myself have made it. Kant thinks that whenever I made a choice I make a kind of law for myself (and others) in that I have a commitment to continue to want it (as opposed to wanting something which can be changed by desires) i.e. willing or choosing to grow vegetables in the garden entails that I commit myself to weeding the garden regularly even if I do not feel like doing so. In other words, I bind my future self to a project of regular weeding by a law that is not conditional on my future self's desires. But my future self also binds me for it is essential that if she is going to do the necessary weeding, I must now buy some pads to protect her knees and the tools for her to weed with. When I make a choice, I impose obligations on myself – I create reasons for myself

- When someone else respects my choice, he is also governed in this way by respect for my autonomy i.e. taking my choice to be law. But my own original decision to choose some desired end is not motivated by respect for my own autonomy in that sense; I cannot respect my own choice or do what is necessary to carry it out until after I have made that choice. The sense in which I represent myself as an end in itself when I make the original choice is not captured by the idea that I respect my own autonomy in taking my choice to be law. When I make the original choice, I have no other reason for taking my end to be absolutely good, other than it is good for me. This suggests that the pertinent fact about me is simply that I am the sort of being for whom things can be good or bad, that I am a being with interests
- It might be insisted that I respect my own autonomy in a different sense that I presuppose what is good for autonomous rational beings, and only for autonomous rational beings, should be treated as good absolutely → but not driven by argument for there is not reason to think that because it is only autonomous rational beings who must make the normative presupposition, the normative presupposition is only about autonomous rational being
 - Many things that I take to be good for me are not good for me merely insofar as I am an autonomous rational being like food, comfort etc → as long as I am an animate being
 - More natural to think that the presupposition behind rational choice is that things are good for beings for whom things can be good or bad are to be treated as good or bad absolutely
- So, the presupposition behind rational choice is that animals, considered as beings for whom things can be good or bad (as beings with interests) are ends in themselves
- As rational beings, we need to justify our actions, to think that there are reasons for them. That requires us to suppose that some ends are worth pursuing and are absolutely good. Without metaphysical insight into a realm of intrinsic values, all we have to go on is that some things are good and bad

for us. That then is the starting point from which we build up our system of values – we take those things to be good or bad absolutely – and in doing that we are taking ourselves to be ends in ourselves. But we are not the only beings for whom things can be good or bad – animals are no different from us in that respect

- Kantian Argument from reciprocity
 - Some might say that we cannot owe duties to animals → if we cannot owe duties to animals, then it seems that they cannot have rights
 - For Kant, to owe something to someone is to be constrained by his will
 - Kant supposes that all of us will that rational beings should be treated as ends in themselves, since (he thinks) the presupposition that rational beings should be treated as ends is built into every act of rational choice. So this is a law that, insofar as we are rational beings, we will together and the fact that we will it together is what makes it possible for us to make claims on each other in its name: we may bind one another through our wills. But since other animals do not participate in making moral laws, nor are they under the authority of those laws, they cannot obligate us in the name of moral laws and so cannot make moral claims on us
 - This is a reciprocity argument because it holds that duties depend on relations of reciprocity
 - Per Korsgaard's argument, Kant's view that the foundation of moral obligation in autonomy is erroneous. On Kant's own account, we are bound by the moral law because we ourselves will that rational beings should be treated in certain ways. But if we are committed to the principle that all beings for whom things can be good or bad, all beings with interests, should be treated as ends in themselves, then even if animals cannot obligate us through their wills, they can obligate us through their natures
- Korsgaard's view on why animals should have legal rights
 - Kant's view is that others can obligate us legally because they may legitimately use coercion (which can only be used for the sake of protecting freedom which only rational beings have) to enforce their rights
 - When I lay claim to a piece of land, you may not use the land without my permission, but I might not do this unilaterally. My claim must be made in the name of the "General Will" in order for it to have the force of law. Kant argues this is only provisional in the state of nature, and cannot be fully realised until we live in a state with a legal system and it is our duty to leave the state of nature and live in a political society
 - If the rational pursuit of my ends involves the presupposition that I have the right to use certain objects in the pursuit of my ends, and that in turn involves the presupposition that everyone's rights should be upheld and enforced,

then the postulates that we ought to live in a state and there are claims of enforceable rights are possible are built into the rational pursuit of my ends

- But who is everyone whose rights should be enforced: Korsgaard thinks it is for beings for whom things can be good or bad i.e. have interests
- But even if it is not the case that animals have rights against us, it does not follow that we have rights over them i.e. to claim them: Kant simply takes it for granted that animals are possible property (due to the Lockean notion of commons) but we cannot suppose, as a presupposition of rational activity, that the world is given to us in common
- While it is true that rational beings are the only animals who must conceive of their situations in normative and moral terms, and therefore the only beings who must presuppose that we have the right to use the earth for maintenance, it does not follow that what we have to presuppose is that rational beings alone have that right → arbitrary to make this assumption except the assumption that the world belongs in common to all of the creatures who depend on its resources
- Our current exercise of dominion over animals is not rightful ownership but simply power → we can only be rightly related to our fellow creatures if we offer them some legal protections

Anderson's Argument for Animal Rights

Central Claim: animals have qualified rights, that are in virtue of their social standing or capacity for reciprocity. So not all, but only some animals have rights

- Three perspectives in criteria of intrinsic value: animal welfare, animal rights and environmental ethics
 - Animal welfare: fundamental criterion is sentience or the capacity to suffer
 - Moral considerability includes vertebrates and arguably much further
 - Sentience generates a claim on moral agents to protect and promote the interests of those who have it; moral agents should give equal weight to substantively equivalent interests, regardless of the species of the individuals whose interests they are
 - Does not ground rights and consistent with utilitarian logic
 - Animal rights: fundamental criterion for moral considerability is subject hood
 - Capacity to have propositional attitudes, emotions, will and an orientation to oneself and one's future
 - More stringent: includes animals that are of intermediate intelligence (dogs, pigs, whales etc)
 - Subjecthood generates rights not only against the infliction of pain but to the conditions for integrity of consciousness and activity, including freedom from boredom, movement and the right to life

- Embodies a strong claim of equality: animals with equivalent morally relevant capacities have equal rights, regardless of species membership
 - Environmental ethics: criterion for moral considerability is being alive, or more generally, a system of life, especially a “natural” one as opposed to part of the humanmade environment
 - Object of concern is typically an aggregate or system: a species, an ecosystem or biosphere
 - Organisms from this perspectives are fungible and valued for their role in perpetuating the larger unit, but individually dispensable
 - Nonliving components of systems of living things may also be valued
 - Extensional differences
 - Animal experimentation: animal welfare can (conditionally) justify this but animal rights object to this
 - Predators: Environmentalists advocate hunting down feral pigs that are destroying the environment, while animal welfarists and rights advocates object
- Argument from Marginal Cases: analogy between animals and human beings who lack distinctively human capacities
 - We do not treat possession of distinctively human capacities as a prerequisite for having rights or being entitled to equal consideration as we grant rights to those with severe mental handicaps
 - Rights are instead grounded in possession of morally relevant capacities such as sentience and will that nonhuman creatures also have → moral consistency dictates extending rights to animals
 - “If the relevant respects in which certain marginal humans possess capacities that merit rights also apply to certain animals, then these animals also merit the appropriate rights”
 - Can charge us with speciesism: that we have unreasoned prejudice against animals in virtue of their species
 - Anderson objects to AMC
 - Fails to appreciate the rich complexity of both animal and human lives and the ways this figures in right claims
 - Fails to appreciate the natural conditions under which, and social relations within which, certain principles of justice make sense
 - Principles of justice cannot be derived simply from a consideration of the intrinsic capacities of moral patients: shape depends also on the nature of moral agents, the natural and social relations they do and care have with moral patients, and the social meanings such relations have
- Objection #1: Moral Significance of Species Membership

- The AMC typically argues that individuals earn entitlements on their own merits, independently of their memberships in generally meritorious groups. Thus, infants, mentally retarded people etc cannot claim rights on account of the rational capacities of the normal human. If they have rights, this must be because of intrinsic capacities they possess which nonhuman animals equally well possess
- Test Case: there is some evidence that chimps and parrots can be taught a language up to a linguistic level of a toddler. Let us suppose this is so. There are some human beings whose potential for language development is limited to the level of the average toddler, and hence no greater than the potential for language possessed by chimps and parrots. It is evident that any human, even with such limited capacities, has a moral right to be taught a language. If the AMC is right in deriving moral rights from individual capacities, then chimps and parrots also have a moral right to be taught a language
 - AMC modification: parrots and chimps do not have an interest in learning a language → Singer: we should only care about equally important interests
- Anderson: The AMC modification is only partly right by acknowledging that what is in an animal's interests depends not only on its individual's capacities, but on the normal life of its species.
 - But the significance of species membership to the good of the animal goes beyond this: Nussbaum argues that humans possess a form of "animal dignity" that attaches to their animal bodies, distinct from the one they claim in virtue of their rationality".
 - Anderson continues to suggest that it is not simply that human dignity calls for the protection and care of our bodies, insofar as this is needed to underwrite each individual's own rationality or self-concept; for humans have this "animal" dignity of the body even if they lack reason and self-understanding → the profoundly demented Alzheimer's patient unable to recognise herself has a dignity that demands that others care for her body
 - These demands go beyond health and hygiene: fundamentally, matters of making the body fit for human society, for presentation to others, and protected from the realm of disgust, and placed in a cultural space of decency
 - If we find the Alzheimer's patient naked and eating from a dinner bowl like a dog, they might well describes what shocks them by saying "They are treating her like an animal!" in response to her degraded condition
 - Animal dignity of humans is essentially tied to their human species memberships, conceived hierarchically in relation to

nonhuman animals and independently of the capacities of the individual whose dignity is at stake

- No way to place animals on an equal footing in this system of meanings: if we were to dress up a dog, such action would not dignify the dog
 - Interests protected by a right are unintelligible apart from a system of meanings in which species membership per se has moral significance: it is a system of meanings in which humans qua humans have a status – a form of dignity – higher than animals, even with respect to features they share with animals
 - Not deny dignity to nonhuman animals but endow animals with their own species-specific dignity: an animal's interest in its dignity exists only in relation to human beings
 - The dignity of an animal, whether human or nonhuman, is what is required to make it decent for human society, for the particular, species-specific ways in which humans relate to them (animals might still have other values independent of relations to humans)
 - Rights at stake exist not only to protect the interests that the rights bearer has in relating to humans, but the interests humans have in decent relations to the rights bearer: do not flow from a creature's capacities but make sense only within a complex system of social relations and meanings
- Objection #2 Rights and social membership
 - Case: suppose great apes and dolphins have intellectual, affective and agentic capacities at least equal to that of toddlers. Human toddlers have a moral right to have their needs for food, shelter, and love directly provided by humans in human society. It therefore follows from the AMC that each individual great ape and dolphin also has a moral right to have its needs directly provided by humans in human society
 - Tentative reply: animal interests dictate we do not do this as it would inhibit their capacities for food hunting
 - Suppose a particular pod of dolphins in the ocean would starve if we did not feed them due to a sudden collapse of their usual sources
 - Individual animals in the wild, in general, do not have a moral right to our direct protection and provision even if they need it to survive and nor do individual animals in the wild have a right to our assistance to protect them against predation
 - This is not because predators do no moral wrong in killing them: We have a moral obligation to protect human children from predation even though nonhuman predators do no moral wrong in killing them

- Anderson: connection of rights to provision with membership in a society; an essential commitment of any society is the collective provision of goods to its members
 - Possession of morally significant capacities is insufficient to make one a member of human societies with claims to social provision but being born to a member of society does make one a member
 - Species-specific moral entitlement that humans have: automatic inclusion in human society with positive rights that accompany this
 - Individual moral rights to provision is tied to social membership since only social memberships could vindicate these rights by specifying who has the obligation to provide the necessities of life to which individuals
 - When moral rights in question are rights to positive provision, only member of human society can claim them
 - Contrasts with rights to nonaggression which can be observed by everyone without collectively instituting a division of moral labour
 - Does not exclude all animals from claiming rights to provision – include animals that have been incorporated into human society like domesticated animals and captives in the zoo → incorporate commits owners to provide for their protection and means of subsistence
 - AMC misleads us to think that the reason for this is because they have a morally superior status, as it assumes that the only way to ground a difference in moral rights is to assert a moral hierarchy: rather, it is the specific kind of social membership the animal has
 - E.g. only house-trained pets have the right to freedom of the house while other animals are kept out of the house. Not because of moral superiority but that we cannot stand a foul house; only house-trained pets have the right to roam the house because only they are fit for intimate human society
 - Not just rights to provision, but rights constitutive of a certain social standing, that depend on an animal's actual membership in society
- Objection #3: Rights and Capacities for Reciprocities
 - Contractualist: Skeptics about animal rights argue that animals cannot have rights because they lack the rational capacity to enter into reciprocal relations with other agents. We conceive moral rights as the product of some kind of rational agreement or convention, often reached through the reciprocal exchange of reasons
 - Can be expressed without reference to a contract via Kant

- AMC response: deny the major premise only beings capable of entering into reciprocal relations can possess moral rights
 - Weakness: right bearers enjoy some rights not in virtue of their intrinsic capacities but in virtue of their membership in human societies, the requirements of standing in a particular sort of relationships to humans or the interests of other people in standing in a certain relationship to the right bearer
- Different response: deny the minor premise that animals are incapable of entering into reciprocal relations with humans
 - Horse riding: merging of wills – a riding together, with consummate skill and grace, as a shared end, a joint cooperative activity – is produced by the reciprocal attempts of rider and horse to make themselves understood to the other
 - Properly trained dogs also exhibit such reciprocity
- Anderson extends the response to argue that it is the capacity to engage in a mutual accommodation of interests, to adapt one's behaviour in response to the claims, corrections and commands of others and not "reason" in the demanding sense of autonomous reflection, that holds the key to understand why reciprocity is so important to rights
 - Reason is only sufficient but not necessary
 - It is not that the capacity for reciprocity commands our esteem and obligates us to recognise rights but it is that to bind oneself to respect the putative rights of creatures incapable of reciprocity threatens to subsume moral agents to intolerable conditions like slavery
- Consider the case of vermin who found their ecological niche inside human homes: parasites and cannot exist outside of human homes
 - Regan suggests that they are subjects and have a right to life, but Anderson suggests that this fails to appreciate the implications of granting rights to creates who implacably behave in ways hostile to human interests → to one-sidedly accommodate their interests would amount to surrender
 - Beings whose interests are so fundamental and essentially antagonistic to humans cannot claim even negative rights against interference and aggression from us
 - Denies the utilitarian argument that our interests outweigh vermin interests since it is more out of inconvenience
- Plurality of values
 - Animal welfare perspective originates in our sympathetic reactions to animals; animal rights originates in our respect for animals, our sense that their independent perspectives make claims on us that we ought to heed. It also trades on our esteem for animals. The environmentalist perspective

originates in our wonder at and awe of nature, conceived as an interconnected system of organisms, as well as in our admiration for individuals

- Anderson's modest proposal
 - Define rights so that the countervailing considerations are necessarily outweighed by the interest that the rights protect: but we need not make the rights hold in all contexts and all circumstances
 - Should say that all animals have a right against wanton or sadistic infliction of suffering and painful experiments merely to test cosmetics
 - Right of great apes against human predation: they have a biography and their lives unfold as a development of personality in long term intimate social relations with others and when they die, other members of their society grieve. Their deaths are meaningful from the perspectives of the apes themselves. This interest is compelling and deserves protection by a right
 - Ruminants and rodents have a point of view that is generic: interest in continued life, a longer life does not add up to more than an accumulation of days

McMahan's argument against Predation

Claim: predation is a moral issue and we ought to protect prey from predation

- Central Question
 - Is there a moral reason to protect potential prey that are capable of suffering and of having a life worth living
 - How strong is the moral reason to protect prey
- McMahan denies that a theory's implication that we must end predation condemns it to absurdity
 - Must assess the reasons in favour and against intervention
- Case for intervening against predation: predation causes vast suffering among its innumerable victims and also deprive those victims of the good experiences they might have had were they not killed
 - Suffering is intrinsically bad for those who experience it and there is a pro tanto reason to prevent it
 - Nussbaum: the death of a gazelle after painful torture is just as bad for the gazelle when torture is inflicted by a tiger as when it is done by a human being and we have similar reasons to prevent it, if we can do so without doing greater harms
 - Two ways to reduce incidence of predation
 - Bring about the gradual extinction of some or all predatory species through sterilisation except for humans which can voluntarily end its predatory behaviour

- Not yet practical but add genetic modifications into carnivorous species so that their progeny would evolve into herbivores
- Counterproductivity Objection: elimination of predation would lead to overpopulation and overwhelm the environment's ability to sustain them. Herbivores then die slowly and painfully from starvation and disease
 - But we can limit the expansion of herbivore populations by means other than predation
 - But this is merely a contingent objection: Consider the case of the endangered Siberian tiger: either (i) complete elimination by letting it die out (with little ecological risk) or (ii) increasing the level of predation in some region by repopulating it with Siberian tigers
 - If (ii) increases suffering and premature death among other animals inhabiting the region, then the view that there is a moral reason to prevent suffering and premature death among animals supports the option of allowing the tigers to die out
- Impersonal value of species objection: existence and survival of a species may have an impersonal value
 - Dworkin: we tend to treat distinct animal species (though not individual animals) as sacred → sacredness is impersonal in that an entity can be sacred without it being good for anyone
 - Sacredness is a reason against elimination but not a reason for there to be more of it: that a type of entity is sacred does not imply a moral reason to cause more entities of that type to exist
 - Not important that there are any particular number of species but that a species that now exists ought not to be extinguished: so we cannot replace extinction with mere introduction of new species
 - McMahan: denies that this conception of the impersonal value of species is correct
 - An indefinite number of species have become extinct: and if the extinction of a species involves a loss of impersonal value that cannot be made up for by the appearance of a new species, it seems that the world must have got worse with every extinction, even when the extinction of one species has coincided with the appearance of more than one new species
 - Absurd that the world would have been better impersonally, if none of the earliest species had become extinct, even if a consequence of that would have been that most of the newer species, perhaps including the human species, would never have existed
 - Human lives are sacred i.e. the death of a person involves a loss of impersonal value, though the coming-into-existence of a person does not involve a gain in impersonal value → in tension with one another

- Loss in impersonal value from the extinction of one species could be made up for by the coming-into-existence of another: suppose that some primate species would not have existed had some psychologically less developed species of reptile not become extinct. It is plausible to think that this is an actual improvement in impersonal terms
 - Also extinction cases where there would not involve a loss of any kind because their existence has a negative impersonal value like diseases and viruses → even if we think the world is in one way worse, need to be balanced against other values like the prevention of suffering
 - Difficult to believe that the impersonal value of the species could on its own outweigh the lives and well-being of the human beings who would otherwise be its victims
- My Reply: incommensurability of sacredness?
 - Sacredness is more irreplaceability
- Objection from suffering of prey being less than pleasure that predators derive from eating them
 - Skepticism about whether animal prey actually do suffer or suffer much: empirical question
 - Given evolutionary function of pain, likely that the killing of prey inflicts great suffering in a high proportion of cases
 - Suffering of prey might matter less than humans
 - Suffering in a person may be accompanied by fear of its significance or anxiety about its continuation while animals lack such higher order thoughts → does not show that the same degree of suffering matters unequally but only that suffering may actually be worse in humans
 - McMahan thinks that suffering in humans can only be actually worse due to its further effects, but not intrinsically worse i.e. psychological traumatic effects
 - McMahan denies that there is a workable explanation of why animals have a lower moral status: it must be attributable to their lack of certain morally significant intrinsic properties on which the higher moral status of a person supervenes such as capacities for self-consciousness, rationality and autonomy
 - But whatever these are that distinguish persons morally from animals, there are some members of the human species that lack them
- Objection from Playing God and the Principle of Nonintervention
 - McMahan's reply: You're like a relative of mine up in the mountains who spends his time producing improved breeds of sheep and pigs. So patronising and irritating to the Almighty to go about putting superior finishing touches to Creation

- If there is no deity guiding events, our only options are allowing events to be determined by purposeless natural forces and guiding them ourselves as intelligently and beneficently as we can
- Principle of nonintervention: interference with animals in the wild violate their autonomy or self-determination
 - Regan: members of predator and prey species do not need help from us in the struggle for survival
 - McMahan's reply: it is true that the predator and prey species will continue to evolve through competition for survival, but it is false that individual prey can do without our help in their struggles for survival
 - Extension from Millian or Walzer's claim of opposition to ostensibly benevolent military interventions by arguing that they tend to violate the rights of self-determination of people in the states in which they are carried out → core is that when the internal balance of forces within a single political community has not already been skewed by prior external interventions, it is generally better for a dispute about the terms on which the members of this community will live together to be settled among themselves rather than being imposed on others who will not share in the resulting common life, even when the outcome is determined by superior forces of one side rather than agreement. For only in this way will the outcome be the product of genuine self-determination
 - McMahan thinks this argument fails to apply in situations where there are two or more distinct communities living within the same political boundaries and one seeks to rule, expel, enslave etc
 - For instance, in Rwanda where one group is engaged in genocide, nonintervention is impermissible

McMahan's argument against benign carnivorousism

- The argument for benign carnivorousism
 - Argument #1: while animal suffering matters, animal lives do not matter as much and so there is a strong moral reason to prevent them from suffering and not a comparably strong reason not to kill
 - Animals are less strongly connected to themselves in the future in the ways that make it rational to be concerned about an individual's future well-being for that individual's own sake → because they have limited self-consciousness, they are incapable of contemplating or caring about anything more than the immediate future
 - Flaw: but the lives of the animal must matter to some extent i.e. have an interest in living to experience the goods that lie in prospect for

them, otherwise it would be better for the animal to be painlessly killed before it could undergo any suffering at all

- Reason to be skeptical of the widespread view that the prevention of suffering among animals is much more important than the extension of their lives → but can still maintain that there is significant difference between persons and animals
- Argument #2: if the lives of animals are good, then if they would not have existed at all without the practice (of breeding), then at the very least benign carnivorousness cannot be worse for them. And since eating animals that have been raised and painlessly killed may be better for people than having to go without meat, the practice would be pareto optimal
 - Reply: the claim that it would not be worse for them is trivially true but that it would be better for them is trivially false. “Worse” and “better” are comparative terms, and one element in each implied comparison never existed at all.
 - This is because it is incoherent to suppose that an animal being caused to exist could be worse for it since it would have to be better for that individual not to have been caused to exist, but there cannot be anyone for whom it is better never to exist
- Argument #3 (restatement): We have to suppose that it can certainly be bad for that animal to exist (noncomparative) and also can be good for the animal to exist’ benign carnivorousness would have to argue that on balance, the lives of the animals it brings into existence are good
 - Some basic facts: although killing the animals might deprive them of several years of life, the amount of good they would thereby lose is comparatively slight; far fewer animals with lives worth living would have existed in the absence of the practice
 - Possible reply: no parallel practice could be justified involving persons → imagine there remains a chronic shortage of organs and many people continue to die for want of an organ transplant. And imagine that the world’s population has reached a point at which people have agreed to adopt a policy of replacement i.e. have a child only when someone dies. Suppose that we allow that a certain number of people be born above the limit, provided that they will be painlessly killed at the age of fifty in order to make their organs available for transplantation. This would be wrong because persons have rights that constrain others from using them in harmful ways even if it promotes the overall goods
 - If animals had rights, then this would be a decisive objection to benign carnivorousness but hard to believe that killing an animal is morally

objectionable for the same reasons and to the same degree as killing a person → we generally would save the person over the animal

- Further, we think it would be justified to kill a chimpanzee to harvest its organs to save a 5 year old
- Possible: animals have rights that are stringent enough to override the interests of meat, but weaker than those of persons → McMahan thinks this is hard to reconcile with the nature of rights, and can only make sense if we attribute equal rights to all human beings to articulate a conception of human equality, and weaker rights to animals in virtue of species membership but McMahan thinks this does not make sense
- We cannot reject benign carnivorousism on the grounds on which we would rightly reject a practice that would cause people to exist in order to use them later in harmful ways
- McMahan offers a purely utilitarian solution: that the comparable difference in welfare from eating meat vs vegetables by 20 people is not higher than the good that an animal's life might contain over several years, even if you significantly discount the good for the absence of significant psychological continuity
- We cannot say that animals we bring into our existence owe their existence to the practice because there are no animal interests that favour instituting a practice of benign carnivorousism → a being can only have interests after they have been caused to exist
- Therefore, the benign carnivore's case rests on (i) the differential pleasure of eating meat compared to eating vegetables and (ii) the impersonal reasons one might have to cause animals to exist with lives that would be good for them
 - But we regard little or no value to (ii): we do not create new entities just because of the impersonal good that would arise
- Potential replies for the proponent of benign carnivorousism
 - Suppose that we have already caused animals to exist and raised them humanely in order to eat them. And suppose we now realise it is in their interest in continuing to live. But if we refrain from killing them, are we morally required to care for them? If we are not, then releasing them into the wild would lead to their demise because they are domesticated. Then no difference if we kill to eat or kill to euthanise
 - McMahan: we acquire responsibilities when we bring individuals into the world → seems wrong to bring an individual that is incapable of surviving in the wild to exist and then to abandon it in the wild
 - Distinguish between the practice as a whole and the act of killing in particular: while killing animals is bad for them, and worse for them than

enabling them to continue to live, the practice as a whole, which includes the act of killing, is good for them

- Some argue that if it is permissible to threaten a potential criminal with punishment by programming a device that will automatically punish him if he commits a crime, then it must also be permissible to disaggregate the automatic punishment strategy into its constituent parts by separately threatening punishment and then fulfilling the threat if it is defied → permissibility of components follow from the permissibility of the strategy as a whole
- McMahan thinks this is mistaken: suppose we could permissibly programme an automatic nuclear retaliatory device to annihilate an enemy country, if it strikes us first, provided that programming the device would have a high probability of deterring a nuclear first strike that would otherwise have a high probability. We could permissibly threaten a country with retaliatory annihilation to deter a nuclear first strike but if this threat were to fail, and the enemy country were to launch a first strike, it could not possibly be permissible to fulfil that threat by annihilating the enemy country when doing so would serve no purpose whatsoever → permissibility of constituents do not in fact follow from the whole
- Another version of benign carnivorousism: we can bundle the act that involves both causing animals to exist and them to cease to exist into a single act (the nuclear case fails because it is two different facts)
 - Create a breed of animals genetically programmed to die at a comparatively early age, when their meat would taste best
 - Parallel practice with humans would be objectionable but not clear why: it is permissible to have a child with a genetic disease that could shorten their life and in fact some might say we ought to keep the child → no right to living beyond fifty
 - The objection to causing people to exist who would be programmed to die at 50 must be impersonal and comparative in nature: to cause such people to exist only because we could cause other people to exist instead who would not have the genetic limitation, despite that causing these people to exist would not address the problem of organ shortages
 - Furthermore, we deliberately cause people to have a guaranteed lower welfare → violates equality
 - Difference between causing animals and humans to exist that may be programmed to die prematurely: suppose that in each case the preprogramming was a result of a random mutation rather than human choice → we would advocate for elimination of the gene for humans and

welcome the discovery for animals as making possible a practice of benign
carnivorism